



File No: EXP202306065

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 5, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against DIGIMAN ALICANTE, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202306065

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 1, 2023. The complaint is directed against the entity identified as DIGIMAN ALICANTE S.L. with NIF B532469069 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

"On April X, 20XX at 14:35, I may have been recorded by the surveillance cameras located in an industrial warehouse at Ocaña Road, 44 in Alicante, where there is a sign that reads Grupo Digisoft." Furthermore, it states that these facilities lack a visible and informative sign indicating the identity of the data controller and the address to which affected individuals can direct their rights."

Along with the complaint, several photographs are provided showing the surveillance cameras, with no informative signs being observed (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on May 11, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On July 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question within the framework of File No: EXP202306065, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following details:

PRELIMINARY INVESTIGATIVE ACTIONS REPORT

BACKGROUND

Date of entry of the complaint: April 1, 2023, April 24, 2023, May 19, 2023, May 27, 2023, June 1, 2023, June 2, 2023, June 3, 2023, July 5, 2023, July 6, 2023, July 17, 2023, December 6, 2023, December 14, 2023, December 16, 2023, December 19, 2023, February 8, 2024, and February 13, 2024.

On the date and registration number May 11, 2023, and REGAGE23s00030248303, notification of the complaint filed by the complainant was forwarded to DIGILAB TEAM, S.L., in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (LOPDGDD), for them to analyze it and respond to this Agency within one month.

On the date and registration number May 11, 2023, and REGAGE23s00030248374, notification of the complaint filed by the complainant was forwarded to DIGIMAN ALICANTE, S.L., in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (LOPDGDD), for them to analyze it and respond to this Agency within one month.

On June 8, 2023, a response was received from the respondent, alleging:

"..... The entity responsible for the installation of surveillance is DIGIMAN ALICANTE, S.L.

Notwithstanding the above, DIGIMAN ALICANTE, S.L. provides, as a data processor, surveillance services to DIGILAB TEAM, S.L. For that reason

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They have signed a data processing agreement in accordance with the provisions of Article 28 of Regulation (EU) 2016/679 General Data Protection Regulation (GDPR), which is attached to this document.

Therefore, it was decided at that time to inform about the existence of video surveillance devices, informing who is responsible for the processing based on the location of those cameras, so that the Interested Party can know at all times who is responsible for the processing of data obtained through video surveillance and to whom they should address to exercise the rights recognized in Article 12 et seq. of the GDPR.

Thus, the informational signs located at the entrance to the facilities and on the ground floor refer to DIGIMAN ALICANTE, S.L. as the responsible party for video surveillance processing, and the informational signs on the first floor refer to DIGILAB TEAM, S.L. as the responsible party for processing.

Additionally, a photo of signs in different areas of the facility where video surveillance cameras are installed is attached.

On July 1, 2023, in procedure AT/02319/2023, the Spanish Agency for Data Protection proceeds to notify the complainant (Registration No. REGAGE23s00043513484) of the admission of the complaint for processing and to carry out the corresponding investigative actions.

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

DIGILAB TEAM, S.L. with NIF B54941729, located at ENRIQUETA ORTEGA, 3, ENT. - 03005

ALICANTE/ALACANT (ALICANTE) and

DIGIMAN ALICANTE, S.L. with NIF B53246906, located at AVDA SALAMANCA 11 - 03005

ALICANTE/ALACANT (ALICANTE)

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- According to the response received (REGAGE23e00037063769 and date 08/06/2023), DIGIMAN ALICANTE is the data processor (in charge of video surveillance), document

"Contrato_ETDigimanDigilab.pdf". DIGILAB TEAM is responsible.

In the same document, the respondent attaches document

"Contestacin_requerimiento_AEPD_EXP202306065_DIGIMAN.pdf" where it shows the existence of different informational signs, but none on the façade, only at the entrance which may be covered by a shutter when closed. It also indicates in this document (p. 12/39) that there are two cameras on the façade.

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- On December 14, 2023, and Registration No. REGAGE23e00084898071A, a response was received to the request sent to DIGIMAN (where they were asked to attach photos of the façade where the notice of the data controller was located); in the attached photos, this sign is observed on the left side of the entrance, and it is also observed that the right side camera, which the complainant reported, focusing on the VOLVO car dealership area, is not present.

It should be specified that this sign was not included in the documentation sent in response to the transfer of the complaint (as specified in the previous paragraph).

CONCLUSIONS:

From various evidence provided by the complainant and as can be seen on page 13 of 39 (section 1. Camera 1 Façade) of the document

“Contestacin_requerimiento_AEPD_exp202306065_DIGIMAN.pdf” (date 08/06/2023 and Registration No. REGAGE23e00037063769) in response from the respondent to the transfer of the complaint, the respondent's facilities only contained a notice of the data controller behind a shutter, which means that this sign could only be visible when the establishment was open (with the shutter up), although in response (date 14/12/2023 and Registration Nos. REGAGE23e00084898071 and REGAGE23e00084898428) to a subsequent request for information, the respondent had attached photos with a sign on the left side which is permanently visible; this sign (as indicated) was not present at the time of the complaint.

Although the complainant presents photos of monitors with images of different people including himself (according to his testimony) obtained from the respondent's website, they are illegible, so no conclusions can be drawn. The respondent, in response to the complainant's email, accepts that these photos were present, stating that they had proceeded to delete them in accordance with the complainant's right to object.

Regarding the right side camera of the facility, the complainant himself states that it was installed until February 2022, a date prior to the complaint.

48-100523

LEGAL GROUNDS

I

Competence

In accordance with [Insert the corresponding text for [Text legal basis I PS].] and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, we proceed to examine the complaint dated 01/04/24, through which the following is conveyed:

“presence of cameras without being properly signposted by an informative poster” (page 1).

The actions of the present proceedings are directed against the entity Digiman Alicante S.L, in its capacity as for the installation of the video surveillance camera system, specifically those installed on the exterior façade, as stated in the written document dated 08/06/23.

The allegations put forth indicate that although the entity responsible for the video surveillance system had an informative poster(s), it was when the main closure of the establishment was lowered, which results in the inability to identify the responsible party to contact in case one wishes to exercise the corresponding rights under the current GDPR.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, according to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the controller intends to further process personal data for a purpose other than that for which they were collected, it shall provide the data subject prior to that further processing with information on that other purpose and any other relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

III

The image of a person, to the extent that it identifies or can identify them, constitutes a that may be subject to processing for various purposes.

Another obligation arising from the use of video surveillance for security purposes, in relation to data protection, is to comply with the right to information, through an informative sign.

Article 22, paragraph 4 of the LOPDGDD provides:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

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IV

Typification and Qualification of the Infraction

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure,

and without prejudice to what results from the instruction, it is considered that the party being complained about has a video surveillance system that is not properly signposted, informing that it is a

The known facts could constitute an infraction, attributable to the party being complained about under Article 13 of the GDPR, previously cited.

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22;

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements "shall expire after three years" and particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law (...).

V

Adoption of Measures

If the infraction is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infraction in accordance with the provisions of the GDPR, typified as an infraction in Articles 83.5 and 83.6, which could motivate such conduct to open an additional sanctioning administrative procedure.

Among the measures to be adopted, the party being complained about must credibly demonstrate that they have proceeded to correct the described situation, by placing an informative sign providing a photograph with date and time in a visible area, without prejudice to the allegations that they deem necessary to make in law.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity DIGIMAN ALICANTE S.L., with NIF B53246906, for the alleged infraction of Article 13 of the GDPR, typified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 1000€ (one thousand euros), without prejudice to what results from the instruction.

Without prejudice to what results from the instruction, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine. However, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the party allegedly

responsible for the infraction, such sanction would be replaced by the declaration of the infraction.

FIFTH: TO NOTIFY this agreement to DIGIMAN ALICANTE S.L., with NIF B53246906, granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this

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reduction, the penalty would be established at 800 euros, resolving the procedure with the imposition of this penalty.

Likewise, at any time prior to the resolution of this procedure, the voluntary payment of the proposed penalty may be made, which will entail a reduction of 20% of its amount. With the application of this reduction, the penalty would be established at 800 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the penalty is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the penalty would be established at 600€ (six hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the penalty.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (800 euros or 600 euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 27, 2024, the respondent has proceeded to pay the penalty in the amount of 600 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the penalty and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the aforementioned Initiation Agreement transcribed above, it was indicated that if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having received a written communication from DIGIMAN ALICANTE, S.L. informing that it has adopted the necessary measures to prevent the reoccurrence of the events leading to the infringement committed, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that this compliance is correct, being additionally able to demonstrate it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this

section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202306065, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to DIGIMAN ALICANTE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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